

Court No. - 3

Case :- WRIT - C No. - 3935 of 2022

Petitioner :- Om Prakash

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mohammad Abid Ali, Mohd Irteqa

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned Demand Notice dated 18.09.2021 issued by the respondent no. 2 (contained in Annexure-2 to the writ petition).

(ii) Issue a writ order or direction in the nature of Mandamus Commanding/Directing the respondents to decide the matter afresh considering the reply/objection of the petitioner dated 05.10.2021 (contained in Annexure No. 4 to the writ petition) "

Learned counsel for the respondent No 2 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 20.5.2022

o.k.